



POLICE DEPARTMENT

June 09, 2009

MEMORANDUM FOR: Police Commissioner

Re: Detective Nelson Colon
Tax Registry No. 905983
115 Precinct Detective Squad
Disciplinary Case No. 84125/08

The above-named member of the Department appeared before me on March 6, 2009, charged with the following:

1. Said Detective Nelson Colon, assigned to the 115th Precinct, on or about and between July 27, 2007 and August 3, 2007, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Detective wrongfully violated [REDACTED] County Family Court Order, Docket # [REDACTED]

PG 203-10 – Page 1, Paragraph 5 – PROHIBITED CONDUCT
NYS Penal Law §215.50 – CRIMINAL CONTEMPT IN THE SECOND DEGREE

The Department was represented by Amy Avila, Esq., Department Advocate's Office, and the Respondent was represented by Peter Brill, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty. His motion to dismiss the charge and specification is dismissed as moot.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Sergeant Ralph Ciaravalli and Teresita Clair.

Sergeant Ralph Ciaravalli

Ciaravalli, a member of the Department for over 11 years, was assigned to the Chief of Detectives Investigations Unit. He testified that he received a referral from the Internal Affairs Bureau concerning an allegation made by the Respondent's [REDACTED] Teresita Clair.¹ Specifically, Teresita alleged that the Respondent assumed custody of their [REDACTED] [REDACTED] during his visitation and that he would not return the child, violating their custody agreement. In conducting his investigation, Ciaravalli said that he performed domestic incident report (DIR) checks, order of protection checks, interviewed Teresita, and conferred with [REDACTED] County Family Court.

During an Official Department Interview of the Respondent, Ciaravalli said that the Respondent admitted to taking custody of his [REDACTED] but explained that he did so "out of fear for her safety." The Respondent said that there were numerous violent incidents at his e [REDACTED]s residence where the child was living and he was fearful for her safety. When asked if he had

¹ The Respondent's [REDACTED] is referred to at times in the transcript and in several exhibits as Teresita Colon, Teresita Palenzuela-Colon, or Teresita Clair. Here, to avoid confusion, she will be referred to as "Teresita" and her husband after the Respondent [REDACTED] as "[REDACTED]"

permission from [REDACTED] County Family Court to assume custody of the child, the Respondent said that he did not.

The Respondent and Teresita provided Ciaravalli with a copy of a "subpoena"² directing Teresita's appearance at Family Court, but none of the paperwork that Ciaravalli reviewed showed that residential custody had been granted to the Respondent. Teresita also provided a copy of the custody agreement (see DX 2, Divorce Stipulation, Article VI: Custody and Visitation). This paperwork did not show the Respondent to have residential custody of [REDACTED]. Ciaravalli said that the paperwork showed the Respondent to have "only visitation."

On cross-examination, Ciaravalli admitted that none of the paperwork that he reviewed barred the Respondent from assuming custody "under these circumstances."

Teresita Clair

Teresita testified that she is employed as a budget analyst for the New York City Department of Parks and Recreation. She [REDACTED] the Respondent in September 1993 and has one child in common with him, [REDACTED], who is [REDACTED] years old. She and the Respondent [REDACTED] in February 2003 in Supreme Court, [REDACTED] County. Part of the [REDACTED] arrangement included a custody agreement for [REDACTED]. Teresita noted that while she and the Respondent have joint custody, she has residential custody. She is [REDACTED]'s primary custodial parent and the Respondent has visitation privileges.

Teresita testified she got re-married to [REDACTED] [REDACTED] County Child Protective Services had been involved in Teresita's new household, which consisted of Teresita, [REDACTED],

² No subpoena was offered or admitted into evidence. Ciaravalli was probably referring to the Order to Show Cause (Department's Exhibit [DX] 1), which the Respondent applied for and directed Teresita to appear and state why custody of [REDACTED] should not be transferred to the Respondent. It is this order that the Respondent is charged with violating.

██████ and a ██████ in common, ██████ now ██████ years old. Teresita admitted that her marriage to ██████ had been "kind of collapsing." Several DIRs were generated. There was also a Family Court order of protection, issued on January 5, 2007, directing ██████ to stay completely away from Teresita and their residence (see Respondent's Exhibit [RX] A). Teresita testified that toward the middle of 2007, her family life was in turmoil and she was getting divorced from ██████

Teresita testified that she "vaguely" recalled July 7, 2007. She said that she was arrested for violating a court's order not to drink alcohol. That day, she had a glass of wine, and ██████ called the police, resulting in her arrest.

After being arrested, Teresita testified, she and the Respondent decided that he would "take ██████ for a while until things settled back to normal at home." Teresita stated that this custody agreement lasted throughout all of July 2007. She claimed that she and the Respondent agreed on a specific date where ██████ would be returned to her. She did not remember what this date was, and it was not written down anywhere. Teresita said that when she called the Respondent to return ██████, he said no. The following day, Teresita was served with Family Court papers, filed by the Respondent, seeking to have custody of the child (see DX 1, Order to Show Cause).

DX 1 is an Order to Show Cause issued by ██████ County Family Court Hearing Officer Linda M. Boggio. The order itself is a fill-in-the-blank form for cases where one party is seeking to modify custody of a minor child. Nelson Colon is listed as the petitioner, and "Teresita" as the respondent (the attached Petition for Modification of an Order of Custody, which is typed, lists her as Teresita Clair). A blank space for additional orders to be written in reads "Ordered,

temporary residential custody to Petitioner pending the Court hearing," but this was crossed out by the hearing officer. The order was returnable on August 14, 2007.

The attached petition states that as per the [REDACTED] judgment, the parties were granted joint custody and Teresita was granted residential custody of the child. The petition details Teresita's arrest on July 7, 2007. The Respondent stated that the [REDACTED] County Police Department called him to the Clair home to take physical custody of [REDACTED] who had remained in his custody since. He asserted that [REDACTED] did not want to return to the Clairs, that she was [REDACTED] and in [REDACTED] as a result of living with the Clairs, and that her emotional demeanor had greatly improved since she was staying with him. The father asserted that he had a more capable and stable household, and that [REDACTED]'s residential custody should be transferred to him with supervised visitation awarded to Teresita.

After receiving DX 1, Teresita said that she contacted her attorney and he filed a petition (a writ of habeas corpus) for the Respondent to return [REDACTED]. This petition had a return date of 24 to 48 hours later, and was sometime during July 2007. Thereafter, Teresita testified, the Respondent was ordered to return [REDACTED] to her and his custody petition was adjourned to a later date. Teresita testified that there were two subsequent court appearances in August and September. She recalled the first was an adjournment and the second resulted in an agreement where Teresita would continue to have residential custody and the Respondent would have more time with [REDACTED]. Teresita testified that her residential custody of [REDACTED] was never terminated, and the Respondent continues to have visitation privileges.

On cross-examination, Teresita agreed that it was around the time of her arrest that she and the Respondent decided that it would be best for [REDACTED] to stay with him until things settled. Teresita said that she had dinner with [REDACTED] during this time but then testified that

she "didn't see her" after she went to live with the Respondent. Teresita stated that she might have taken [REDACTED] out to dinner once when she lived with the Respondent. The two had contact "over the phone and so forth." Per her agreement with the Respondent, [REDACTED] was supposed to reside with him until [REDACTED] was "removed from the house." She claimed that she had agreed upon a date with the Respondent to return the child, a date that she did not recall, and telephoned the Respondent to inform him that [REDACTED] was no longer living at her house. Teresita said the Respondent refused to return [REDACTED]. She noted that the Respondent's refusal to return [REDACTED] occurred a day or two before she had received the Respondent's petition to modify the custody agreement.

Upon appearing in court on the petitions, Teresita said that [REDACTED] was returned to her; the Respondent had brought her along to court. She testified that the Respondent was never found to be in contempt and nothing prevented her from taking [REDACTED] home after the court appearance.

On questioning regarding her [REDACTED] agreement with the Respondent, DX 2, Teresita affirmed her familiarity with it. She agreed that the custody section of the agreement had "flexibility especially because [the Respondent] is a police officer." Accordingly, she and the Respondent worked out their visitation and parenting schedules amongst each other until this incident.

DX 2 consists of Article VI of the divorce stipulation between the Respondent and Teresita. It states that the parties will have joint custody of [REDACTED] with Teresita to have residential custody and the Respondent to have visitation.

Teresita did not recall the specific day that [REDACTED] left her house but knew it was definitely before she asked that [REDACTED] be returned.

The Respondent's Case

The Respondent testified on his own behalf.

The Respondent

The Respondent, a member of the Department for fifteen years, is currently assigned to the 115 Precinct Detective Squad. He was formerly married to Teresita Clair. They had one child together, [REDACTED] who is currently [REDACTED] years old. The Respondent said that he had an "amicable" relationship with his [REDACTED] and claimed that they got along and "help[ed] each other." He presently lived alone in [REDACTED] in [REDACTED] Teresita and [REDACTED] live in nearby [REDACTED].

The Respondent testified that his current visitation arrangement with Teresita allowed him to pick up [REDACTED] as much as possible and spend much of his free time with her. The Respondent noted that there was no strict visitation schedule and he characterized the arrangement as "flexible." He claimed that "all I have to do is pick up the phone" to call Teresita when he wants to see [REDACTED] and this arrangement had existed since their [REDACTED]. The child frequently stayed overnight at the Respondent's residence.

As a detective, the Respondent testified, he received 27 vacation days annually in addition to a small number of chart days. [REDACTED] has accompanied him on some of his vacations. Last year, he took the child away on a two-week vacation.

The Respondent testified that he became concerned with [REDACTED]'s living environment when she was living with the [REDACTED]. He explained that their household was volatile and the police had responded "many times" because of domestic violence incidents. The Respondent was aware that the police had responded to the [REDACTED] home because [REDACTED], Teresita or the

neighbors would call him. On a few occasions, the Respondent said that Teresita called him and asked him to pick up [REDACTED]. He learned that behavior such as "yelling, screaming, pushing, . . . throwing objects around the house, breaking things . . ." was customary at the [REDACTED] residence. The Respondent said many of the problems were fueled by drinking and [REDACTED]'s use of drugs.

The Respondent recalled that Teresita was arrested at a bar one evening for violating an order barring her from drinking alcohol. Thereafter, he picked [REDACTED] up at "a home with this person who I never met" and took her home. The Respondent said that Teresita expressed to him that she felt it would be better for [REDACTED] to stay with him "for the time being." This occurred during the summertime when school was not in session. There was no specific date that the child was supposed to be returned to Teresita; the Respondent stated that the agreement was for him to keep the child until "things got better."

During the time that he had [REDACTED], the Respondent testified that he filed a petition in Family Court (see DX 1, the Order to Show Cause) to change the custody arrangement. He claimed that after Teresita was served with the petition, she telephoned him to say that she wanted the child back. The Respondent "disagreed" with Teresita "because the situation was still the same." He did not remember if [REDACTED] had left the house at this point, and noted that it was easy for him to return because his parents lived in the vicinity. The Respondent said after he filed DX 1, he was served with a "court order" as well by Teresita's attorney. The Respondent testified that his attorney advised him to keep [REDACTED] until the August 1, 2007, court appearance.

At the court appearance, the Respondent testified that he and Teresita appeared before Justice Pastoressa of Supreme Court, [REDACTED] County. He brought [REDACTED] to court on this date and the custody issue was temporarily resolved. The Respondent was not found in contempt of

court. Pastoressa did not "himself have to address any issue about returning the child," but the Respondent conceded that [REDACTED] went home with Teresita after the proceeding.

The Respondent testified that the matter was adjourned for a future date, where the parties appeared in [REDACTED] County Family Court before Judge Boggio (see DX 3, transcription of taped Family Court proceeding, dated Aug. 14, 2007). The Respondent was not found to be in contempt at this proceeding either. He was granted permission to take [REDACTED] on vacation for two weeks. On another adjournment date, the visitation arrangement and [REDACTED] agreement were modified.

On cross-examination, the Respondent agreed that he did not have permission from any court to take residential custody of [REDACTED]. He reiterated that his reason for assuming custody was because he did not want the child in his [REDACTED]'s household because of the problems there.

The Respondent testified that he did not inform his [REDACTED] beforehand that he was filing a petition to modify the custody agreement. She was served with a subpoena around July 24, 2007. The Respondent agreed that "asking the court to do something and the court actually doing it" are two separate things.

The Respondent admitted that he did not return [REDACTED] despite Teresita asking him to do so. He did not return her until the August 2007 court appearance, where he was ordered to surrender custody of the child to her.

On re-direct examination, the Respondent testified that there was no court order barring him from keeping [REDACTED] from July to August 2007.

FINDINGS AND ANALYSIS

The Respondent is charged with conduct prejudicial to the good order, efficiency and discipline of the Department by violating a Family Court order, Docket Number [REDACTED]

[REDACTED] As became clear at the outset of the trial, the order in question was an Order to Show Cause, DX 1, that the Respondent himself applied for in an effort to modify the custodial arrangement of [REDACTED], the daughter of the Respondent and Teresita Clair, his [REDACTED]. The Order to Show Cause did not order the Respondent to do anything. All it ordered Teresita to do was appear in Family Court on August 14, 2007, and answer the Respondent's motion to transfer residential custody of [REDACTED] to him. Thus, the Respondent is Not Guilty of violating this order.

At trial, the Department essentially revised their theory of the case, arguing that what the Respondent actually violated was the [REDACTED] decree. As the Department stated on summation, "The issue in this case is that Detective Colon intentionally disregarded a [REDACTED] County Supreme Court order by residential custody of [REDACTED] to the detective's [REDACTED]" This is a reference to the stipulation on custody and visitation, DX 2, that was incorporated into the [REDACTED] of the Respondent and Teresita. The Department's position was that by refusing to return [REDACTED], the Respondent violated Supreme Court's [REDACTED] order.

There are several problems with this. The first is one of notice, because the Respondent was not placed on notice that he was being accused of violating any Supreme Court order. But even if the Respondent were on notice of this, there was no "order" of Supreme Court to this effect, so the Respondent could not violate any order.

It is true that the stipulation between the Respondent and Teresita as to custody and visitation, giving Teresita residential custody and the Respondent visitation, would have been

incorporated into the judgment of [REDACTED] that was subsequently issued by Supreme Court. That does not mean, however, that the Respondent violated an order of Supreme Court by maintaining custody of [REDACTED]. Just because an act was not specifically permitted does not mean that it was prohibited. The stipulation contemplated that Respondent and Teresita would cooperate fully in the raising of their [REDACTED]. Obviously, it did not specifically contemplate that Teresita would get arrested. That does not mean that the Respondent violated the stipulation or the judgment by maintaining post-arrest custody of [REDACTED] any more than Teresita violated those processes by allowing the Respondent to do so after her arrest. While Teresita could have moved in Supreme Court to have the Respondent held in contempt, there is no evidence that this occurred. The Department is not entitled to simply decide that the Respondent's act was contemptuous when Supreme Court did not even broach the subject. In fact, Family Court allowed the Respondent to take [REDACTED] on vacation to Florida (see DX 3, court appearance), even after hearing her attorney describe the Respondent's prior action as a "kidnapping."

It should be noted that while Teresita claimed that she and the Respondent had agreed on a specific date on which [REDACTED] would be returned, she could not say what this date was. Teresita also testified that they agreed that the Respondent would keep [REDACTED] until things calmed down at the [REDACTED] household, and until [REDACTED] was no longer living there. It is therefore unlikely that a date would have been specifically set.

The Respondent's act of taking custody of [REDACTED] after Teresita's arrest, then deciding to keep custody of her and move in Family Court for a modification of the custody and visitation agreement, did lead to litigation, but that is far from unusual in [REDACTED] cases. Rather, it was one of the countless complications that may arise in joint custody situations like this one, in which parents are supposed to "communicate with each other and work together for their

children's benefit," see Matter of Grasso v. Grasso, 51 A.D.3d 920, 921 (2d Dept. 2008).

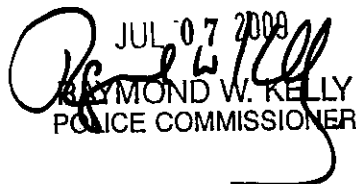
Situations may arise in which the parents disagree about the temporary physical custody of a child, and those disagreements have to be resolved in court, as they were here. From all the evidence adduced, neither Supreme nor Family Court appears to have found that the Respondent violated any order or mandate. Accordingly, this Court will not find that his actions were prejudicial to the good order, efficiency and discipline of the Department. Thus, the Respondent is found Not Guilty.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner-Trials

APPROVED



JUL 07 2008
RAYMOND W. KELLY
POLICE COMMISSIONER